

SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil Division

North District, Michael D. Antonovich Antelope Valley Courthouse, Department A03

26AVSC00192

**NICOLAS HERNANDEZ vs LOCAL INITIATIVE HEALTH
AUTHORITY OF LOS ANGELES COUNTY**

May 22, 2026

3:12 PM

Commissioner: Honorable Robert J. Palazzolo
Judicial Assistant: Z. Loeser
Courtroom Assistant: None

CSR: None
ERM: None
Deputy Sheriff: None

APPEARANCES:

For Plaintiff(s): No Appearances

For Defendant(s): No Appearances

NATURE OF PROCEEDINGS: Ruling on Submitted Matter

The Court, having taken the matter under submission on 05/21/2026 for Non-Jury Trial, now rules as follows:

The Court finds that the Plaintiff has not yet exhausted all appropriate administrative remedies pursuant to Government Code section 905. This case is dismissed without prejudice.

The Court orders the Amended Plaintiff's Claim (1st) filed by Nicolas Hernandez on 03/20/2026 dismissed Without Prejudice.

Clerk to give notice.

Certificate of Mailing is attached.

This leaves the door open to filing again. When a case is dismissed "without prejudice" it essentially means that the case never happened and that the same that the same claim can be brought again in a subsequent action, as there has been no final adjudication on the merits of the controversy. The Commissioner was very fair on this case - taking it into submission shows that he recognized the true depth of the case and did not dismiss it on the spot to clear the queue. Enter the Tort Claim (Government Code section 905)...